



POLICE DEPARTMENT

July 15, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202302046 (Incident Date: January 24, 2023) regarding Police Officer Jeyson Bisono Saint Hilaire, Tax No. 960252 (DADS No. 2024-30210), and Police Officer Ryan Lopez, Tax No. 965783 (DADS No. 2024-30211)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in connection with CCRB Case No. 202302046, pertaining to Police Officers Jeyson Bisono Saint Hilaire and Ryan Lopez. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that their actions do not warrant the proposed discipline.

In this matter, Officers Bisono Saint Hilaire and Lopez responded to a 911 call for a violent emotionally disturbed person who was off his medication. The caller, the complainant's mother, met the officers at the location and unlocked the apartment door for the officers to enter the apartment. The officers found the complainant in bed and subsequently determined that he needed to be removed to the hospital for psychiatric evaluation.

The CCRB substantiated two allegations against Officer Bisono Saint Hilaire and two against Officer Lopez. The Police Commissioner agrees with the CCRB that Officer Lopez's handling of his conducted electrical weapon in this situation constituted an improper threat of force. However, the Police Commissioner believes that the officers' entry into the apartment was proper and that there was no improper search. Officers Bisono Saint Hilaire and Lopez entered the apartment to ensure the safety of the complainant at the behest of his mother. They were not there

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for a law enforcement or investigative purpose. Further, they entered only after the complainant's mother unlocked the apartment door with a key. It was not unreasonable for them to believe the mother had authority to permit them entry. Finally, Officer Bisono Saint Hilaire's act of pulling the blanket off the complainant did not constitute an improper search.

Therefore, based on the foregoing, Officer Bisono Saint Hilaire will receive no disciplinary action for the improper entry and search allegations. Officer Lopez will also receive no disciplinary action for the improper entry allegation. However, he will be issued a Schedule "B" Command Discipline with the forfeiture of five vacation days for the threat of force allegation. The mitigated penalty is appropriate here given the totality of the circumstances along with Officer Lopez's excellent work history and lack of formal disciplinary history.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino". The signature is fluid and cursive, with a large loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office